

**STATE OF CALIFORNIA
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
895 Aerovista Place, Suite 101
San Luis Obispo, California 93401**

**WASTE DISCHARGE REQUIREMENTS ORDER NO. R3-2004-0068
NPDES NO. CA0047830**

Waste Discharger Identification No. 3 400101001

For

**AVILA BEACH COMMUNITY SERVICES DISTRICT
AND PORT SAN LUIS HARBOR DISTRICT,
SAN LUIS OBISPO COUNTY**

The California Regional Water Quality Control Board, Central Coast Region (Regional Board), finds that:

PURPOSE OF ORDER

1. The Avila Beach Community Services District (Discharger) submitted an application for authorization to continue discharging under the National Pollutant Discharge Elimination System (NPDES) on May 10, 2004. The Regional Board last issued NPDES Permit No. CA0047830 on September 8, 1999 (Order No. 99-59).

FACILITY OWNER AND LOCATION

2. **Owner and Operator** – The Discharger operates a wastewater collection, treatment, and disposal system to provide sewerage service to the community of Avila Beach and Port San Luis Harbor District.
3. **Sewering Entity** – Port San Luis Harbor District retains ownership and direct responsibility for wastewater collection and transport systems up to the point of discharge into the influent wet well of the Discharger's wastewater treatment facility. It is incumbent upon Port San Luis Harbor District to protect the environment to the greatest degree possible and insure their collection system is protected and utilized properly. This responsibility includes preventing overflows and may include

restricting or prohibiting the volume, type, or concentration of wastes added to the system.

4. **Facility Location** – The Discharger's wastewater treatment facility is located on property owned by the Discharger at 2850 Avila Beach Drive (Section 31, T31S, R12E, MD B&M), as shown in Attachment A of this Order.

FACILITY DESCRIPTION

5. **Treatment System** – The treatment facility consists of a primary clarifier, trickling filter, secondary clarifiers, disinfection with chlorine, and dechlorination. The treatment process is shown in Attachment B of this Order. Design capacity of the treatment facility is 0.2 million gallons per day (MGD). Annual average flow in 2003 was 0.03 MGD. Peak seasonal flows (occurring during summer holidays and weekends) reached 0.09 MGD in 2003.
6. **Discharge Location** – Treated municipal wastewater is discharged to the Pacific Ocean through a 2240-foot (690 m) outfall. The outfall terminates in San Luis Bay (35°10'25" N. Latitude, 120°44'01" W. Longitude) in approximately 29 feet (9.0 m) of water, about 540 feet beyond the Avila Pier. The minimum initial dilution of the discharge (seawater:effluent) is approximately 10:1. The outfall location is shown on Attachment A.

7. **Minor Discharge** – The U.S. Environmental Protection Agency and Regional Board classify this discharge as a minor discharge (<1 MGD).

RELEVANT REGULATIONS

8. **Secondary Treatment Standards** – On September 20, 1984, the U.S. Environmental Protection Agency promulgated “Equivalent to Secondary Treatment” standards (40 CFR Part 133). “Equivalent to Secondary Treatment” standards apply to facilities with certain types of biological treatment processes that cannot consistently meet secondary treatment limitations, including trickling filters. The Discharger utilizes trickling filters and cannot consistently meet secondary treatment limitations; therefore “Equivalent to Secondary Treatment” standards apply to the Discharger.
9. **Ocean Plan** – The *Water Quality Control Plan, Ocean Waters of California – California Ocean Plan* (Ocean Plan) contains water quality objectives and other requirements governing discharges to the Pacific Ocean. The State Water Resources Control Board (State Board) adopted and the U.S. Environmental Protection approved amendments to the Ocean Plan most recently on December 3, 2001.
10. **Basin Plan** – The *Water Quality Control Plan, Central Coastal Basin* (Basin Plan) incorporates statewide plans and policies by reference and contains a strategy for protecting beneficial uses of State waters. The Regional Board adopted the Basin Plan on September 8, 1994.
11. **Beneficial Uses** – Existing and anticipated beneficial uses in the vicinity of the discharge include:
- Water Contact recreation;
 - Non-contact water recreation;
 - Industrial service supply;
 - Navigation;
 - Marine habitat;
 - Shellfish harvesting;
 - Ocean commercial and sport fishing; and
 - Wildlife habitat.

MONITORING AND REPORTING PROGRAM

12. Monitoring and Reporting Program No. R3-2004-0068 (MRP) is included as part of this Order as Attachment C. The MRP requires routine influent, effluent, and receiving water monitoring, outfall inspections, and detailed reporting of sewage spills.

CALIFORNIA ENVIRONMENTAL QUALITY ACT

13. Waste discharge requirements for this discharge are exempt from the provisions of the California Environmental Quality Act (Public Resources Code, Section 21100, et seq.) in accordance with Section 13389 of the California Water Code.

GENERAL FINDINGS

14. **Anti-Degradation Policy** – The discharge authorized in this permit is expected to maintain receiving water quality and associated beneficial uses of the receiving waters. Discharge in accordance with limitations and specifications of this permit is not expected to degrade water quality. Accordingly, this permit is consistent with the requirements of State Water Resources Control Board Resolution No. 68-16 (commonly called the anti-degradation policy).
15. **Anti-Backsliding** – 40 CFR Section 122.44(l) requires effluent limitations for reissued NPDES permits be at least as stringent as the previous permit, unless certain grounds for “backsliding” apply. All effluent limitations in the proposed Order are at least as stringent as the previous permit and comply with Anti-Backsliding provisions.
16. **Mandatory Penalties** – Section 13385(h) et seq. of the California Water Code requires the Regional Board to impose mandatory penalties for certain effluent limit violations. Section 13385(h) et seq. applies to effluent discharged to the ocean from this Discharger.

17. A permit and the privilege to discharge waste into waters of the State is conditional upon the discharge complying with provisions of Division 7 of the California Water Code of the Clean Water Act (as amended or as supplemented by implementing guidelines and regulations) and with any more stringent effluent limitations necessary to implement water quality control plans, to protect beneficial uses, and to prevent nuisance. This Order shall serve as a National Pollutant Discharge Elimination System Permit pursuant to Section 402 of the Clean Water Act. Compliance with this Order should assure conditions are met and mitigate any potential changes in water quality due to the discharge.
18. **Public Notice** – On June 3, 2004, the Regional Board notified the Discharger and interested persons of its intent to reissue waste discharge requirements for the discharge, provided them with an opportunity to submit their written views, comments and recommendations, and scheduled a public hearing.
19. **Public Hearing** – In a public hearing on September 10, 2004, the Regional Board heard and considered all comments pertaining to the discharge and found this Order consistent with the above findings.

IT IS HEREBY ORDERED, pursuant to authority in Section 13263 and 13377 of the California Water Code, that Avila Beach Community Services District, its agents, successors, and assigns, may discharge waste from its wastewater treatment plant providing it complies with the following:

Any person affected by this action of the Regional Board may petition the State Water Resources Control Board to review the action in accordance with California Water Code Section 13320, and Title 23, California code of Regulations, Section 2050. The State Water Resources Control Board, Office of Chief Counsel, P.O. Box 100, Sacramento, CA 95812, must receive the petition by October 10, 2004. Copies of the law and regulations applicable to filing petitions will be provided upon request.

All technical and monitoring reports submitted pursuant to this Order are required pursuant to Section 13267 and 13383 of the California Water Code. Failure to submit reports in accordance with schedules established by this Order, attachments to this Order, or failure to submit a report of sufficient technical quality to be acceptable to the Executive Officer, may subject the discharger to enforcement action pursuant to Section 13268 and 13385 of the California Water Code. The Regional Board will base all enforcement actions on the date of Order adoption.

(General permit conditions, definitions and the method of determining compliance are contained in the attached "Standard Provisions and Reporting Requirements for National Pollutant Discharge Elimination System Permits," dated January 1985, included as part of this Order.)

Throughout these requirements footnotes are listed to indicate the source of requirements specified. Requirement footnotes are as follows:

A = California Ocean Plan

B = Basin Plan

C = Thermal Plan

D = Code of Federal Regulations Title 40 Parts 122 and 133

Requirements not referenced are based on staff's best professional judgement.

A. DISCHARGE PROHIBITIONS

1. Discharge of treated wastewater at a location other than 35°10'25" N. Latitude, 120°44'01" W. Longitude, is prohibited.

B. EFFLUENT LIMITATIONS

1. Effluent dry weather flow shall not exceed a monthly average of 0.2 MGD.
2. "Removal Efficiencies" for Suspended Solids and Biochemical Oxygen Demand (BOD) shall not be less than 75% and effluent shall not exceed the following:^D

Parameter	Units	Monthly (30-Day) Average	Weekly (7-Day) Average	Daily Maximum
BOD, 5-day	mg/L	40	60	90
Suspended Solids	mg/L	40	60	90
Total Coliform	MPN/100 mL	23 (Median of 7 samples)	--	2400
Grease and Oil	mg/L	25	40	75
Settleable Solids	mL/L	1.0	1.5	3.0
Turbidity	NTU	75	100	225
pH	--	Within limits of 6.0 to 9.0 at all times		

3. Effluent shall not exceed the following limits:¹

PROTECTION OF MARINE AQUATIC LIFE

Constituent	Units	6-Month Median	Daily Maximum	Instantaneous Maximum
Arsenic	mg/L	0.06	0.32	0.85
Cadmium	mg/L	0.01	0.04	0.11
Chromium(Hex) ²	mg/L	0.02	0.09	0.22
Copper	mg/L	0.035	0.11	0.31
Lead	mg/L	0.02	0.09	0.22
Mercury	µg/L	0.44	1.76	4.40
Nickel	mg/L	0.06	0.22	0.55
Selenium	mg/L	0.17	0.66	1.65
Silver	mg/L	0.01	0.03	0.08
Zinc	mg/L	0.14	0.80	2.12
Cyanide ³	mg/L	0.01	0.04	0.11
Total Chlorine Residual	mg/L	0.02	0.09	0.66
Ammonia (as N)	mg/L	6.60	26.4	66.0
Acute Toxicity	TUa	--	0.6	--

¹ These effluent limitations are based on California Ocean Plan criteria using a minimum initial dilution of 10:1 (seawater:effluent). If actual dilution is found to be less than this 10:1, these effluent limitations will be recalculated and this Order revised.

² Discharger may at their option meet this objective as a total chromium objective.

³ If the Discharger can demonstrate to the satisfaction of the Regional Board that an analytical method is available to reliably distinguish between strongly and weakly complexed cyanide, effluent limitations for cyanide may be met by the combined measurement of free cyanide, simple alkali metal cyanides, and weakly complexed organometallic cyanide complexes. In order for the analytical method to be acceptable, the recovery of free cyanide from metal complexes must be comparable to that achieved by Standard Methods 412F, G, and H (Standard Methods for the Examination of Water and Wastewater).

Constituent	Units	6-Month Median	Daily Maximum	Instantaneous Maximum
Chronic Toxicity	TUc	--	11.00	--
Phenolic Compounds (non-chlorinated)	mg/L	0.33	1.32	3.30
Chlorinated Phenolics	mg/L	0.01	0.04	0.11
Endosulfan ⁴	µg/L	0.10	0.20	0.30
Endrin	µg/L	0.02	0.04	0.07
HCH ⁵	µg/L	0.04	0.09	0.13
Radioactivity	Not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30269 of the California Code of Regulations.			

PROTECTION OF HUMAN HEALTH – NONCARCINOGENS

Constituent	Units	30-Day Average
acrolein	mg/L	2.42
antimony	mg/L	13.2
bis(2-chloroethoxy) methane	mg/L	0.05
bis(2-chloroisopropyl) ether	mg/L	13.2
chlorobenzene	mg/L	6.27
chromium (III)	g/L	2.09
di-n-butyl phthalate	mg/L	38.5
dichlorobenzenes ⁶	mg/L	56.1
diethyl phthalate	mg/L	363
dimethyl phthalate	g/L	9.02
4,6-dinitro-2-methylphenol	mg/L	2.42
2,4-dinitrophenol	mg/L	0.04
ethylbenzene	mg/L	45.1
fluoranthene	mg/L	0.17
hexachlorocyclopentadiene	mg/L	0.64
nitrobenzene	mg/L	0.05
thallium	mg/L	0.02
toluene	g/L	0.94
tributyltin	µg/L	0.02
1,1,1-trichloroethane	g/L	5.94

⁴ Endosulfan shall mean the sum of endosulfan-alpha and -beta and endosulfan sulfate.

⁵ HCH shall mean the sum of the alpha, beta, gamma (lindane) and delta isomers of hexachlorocyclohexane.

⁶ Dichlorobenzenes shall mean the sum of 1,2- and 1,3-dichlorobenzene.

PROTECTION OF HUMAN HEALTH - CARCINOGENS

Constituent	Units	30-Day Average
acrylonitrile	µg/L	1.1
aldrin	ng/L	0.24
benzene	µg/L	64.9
benzidine	ng/L	0.76
beryllium	µg/L	0.36
bis(2-chloroethyl) ether	µg/L	0.49
bis(2-ethylhexyl) phthalate	µg/L	38.5
carbon tetrachloride	µg/L	9.9
chlordane ⁷	ng/L	0.25
chlorodibromomethane	µg/L	94.6
chloroform	µg/L	1430
DDT ⁸	ng/L	1.87
1,4-dichlorobenzene	µg/L	198
3,3'-dichlorobenzidine	µg/L	0.09
1,2-dichloroethane	mg/L	0.31
1,1-dichloroethylene	mg/L	0.01
dichlorobromomethane	mg/L	0.07
dichloromethane	mg/L	4.95
1,3-dichloropropene	µg/L	97.9
dieldrin	ng/L	0.44
2,4-dinitrotoluene	µg/L	28.6
1,2-diphenylhydrazine	µg/L	1.76
halomethanes ⁹	mg/L	1.43
heptachlor	ng/L	0.5
heptachlor epoxide	ng/L	2.2
hexachlorobenzene	ng/L	2.31
hexachlorobutadiene	µg/L	154
hexachloroethane	µg/L	27.5
isophorone	mg/L	10
N-nitrosodimethylamine	µg/L	80.3
N-nitrosodi-N-propylamine	µg/L	4.18
N-nitrosodiphenylamine	µg/L	27.5
PAHs ¹⁰	µg/L	0.10

⁷ Chlordane shall mean the sum of chlordane-alpha, chlordane-gamma, chlordene-alpha, chlordene-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

⁸ DDT shall mean the sum of 4,4'DDT, 2,4'DDT, 4,4'DDE, 2,4'DDE, 4,4'DDD, and 2,4'DDD.

⁹ Halomethanes shall mean the sum of bromoform, bromomethane (methyl bromide), and chloromethane (methyl chloride).

¹⁰ PAHs (polynuclear aromatic hydrocarbons) shall mean the sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo[k]fluoranthene, 1,12-benzoperylene, benzo(a)pyrene, chrysene, dibenzo(ah)anthracene, fluorene, indeno(1,2,3-cd)pyrene, phenanthrene, and pyrene.

Constituent	Units	30-Day Average
PCBs ¹¹	ng/L	0.21
TCDD equivalents ¹²	pg/L	0.04
1,1,2,2-tetrachloroethane	mg/L	0.03
tetrachloroethylene	µg/L	20
toxaphene	ng/L	2.31
trichloroethylene	µg/L	297
1,1,2-trichloroethane	mg/L	0.10
2,4,6-trichlorophenol	µg/L	3
vinyl chloride	µg/L	396

4. In addition to the concentration-based limitations above, the “Mass Emission Rate”¹³ of each parameter and constituent shall not exceed the “Maximum Allowable Mass Emission Rate”¹⁴ for the period corresponding to that parameter or constituent.
5. The Discharger shall report violations of the Instantaneous Maximum or “Maximum Allowable Daily Emission Rate” to the Executive Officer within 24 hours after discovery.

¹¹ PCBs (polychlorinated biphenyls) shall mean the sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254 and Aroclor-1260.

¹² TCDD Equivalents shall mean the sum of the concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as shown below:

Isomer Group	Toxicity Equivalent Factor	Isomer Group	Toxicity Equivalent Factor
2,3,7,8-tetra CDD	1.0	1,2,3,7,8-penta CDF	0.05
2,3,7,8-penta CDD	0.5	2,3,4,7,8-penta CDF	0.5
2,3,7,8-hexa CDDs	0.1	2,3,7,8-hexa CDFs	0.1
2,3,7,8-hepta CDD	0.01	2,3,7,8-hepta CDFs	0.01
octa CDD	0.001	octa CDF	0.001
2,3,7,8-tetra CDF	0.1		

¹³ “Mass Emission Rate” is defined by the following equation:

$$\text{Mass Emission Rate (lbs/day)} = 8.34 \times C \times Q$$

Where C is the measured daily constituent concentration or the average of measured daily constituent concentrations, in mg/L, and Q is the measured daily flow rate or the average of measured daily flow rates over the period corresponding to the effluent concentration limitation (e.g., daily, weekly, monthly, 6-month), in MGD.

¹⁴ The “Maximum Allowable Mass Emission Rate”, whether for a day, week, month, or six-month period, is determined by the following equation:

$$\text{Maximum Allowable Mass Emission Rate (lbs/day)} = 8.34 \times C_e \times Q$$

Where C_e is the effluent concentration limitation, in mg/L; and Q is the measured daily flow rate or the average of measured daily flow rates (up to 0.2 MGD) over the period corresponding to the effluent concentration limitation (e.g., daily, weekly, monthly, 6-month), in MGD.

6. Effluent shall be essentially free of materials and substances that:^A

- a. float or become floatable upon discharge;
- b. may form sediments which degrade benthic communities or other aquatic life;
- c. accumulate to toxic levels in marine waters, sediments or biota;
- d. decrease the natural light to benthic communities and other marine life;
- e. result in aesthetically undesirable discoloration of the ocean surface;

C. RECEIVING WATER LIMITATIONS

(Receiving water quality is a result of many factors, some unrelated to the discharge. This permit considers these factors and is designed to minimize the influence of the discharge in the receiving water.)

The discharge shall not cause:

1. The following bacteriological limits to be exceeded in the water column (a) within a zone bounded by the shoreline and the 30-foot depth contour/a distance of 1,000 feet from the shoreline; (b) within areas where there are kelp beds; and (c) within areas used for body contact recreation.^A

Parameter	Total Coliform (MPN/100 mL)	Fecal Coliform (MPN/100 mL)
Log Mean (30-day)	--	200
90% of Samples (60-day)	--	400
80% of Samples (30-day)	1,000	--
Maximum ¹⁵	10,000	--

2. The following bacteriological limits to be exceeded in the water column in areas where shellfish are harvested:^A

Parameter Applicable to any 30-day period	Total Coliform (MPN/100 mL)
Median	70
90% of Samples	230

3. Floating particulates and grease and oil to be visible on the ocean surface.^A
4. Aesthetically undesirable discoloration of the ocean surface.^A
5. Significant reduction of transmittance of natural light in ocean waters outside the "zone of initial dilution".^A
6. Change in the rate of deposition of inert solids and the characteristics of inert solids in ocean sediments such that benthic communities are degraded.^A
7. The dissolved oxygen concentration outside the "zone of initial dilution" to fall below 5.0 mg/L or to be depressed more than 10 percent from that which occurs naturally.^A
8. The pH outside the "zone of initial dilution" to be depressed below 7.0, raised over 8.3, or changed more than 0.2 units from that which occurs naturally.^A
9. Dissolved sulfide concentrations of waters in and near sediments to significantly increase above that present under natural conditions.^A
10. Concentrations of the same substances listed in Effluent Limitation No. B.2. to increase in marine sediments to levels which would degrade indigenous biota.^A
11. Objectionable aquatic growths or degradation of indigenous biota.^A
12. Concentrations of organic materials in marine sediments to increase to a level that would degrade marine life.^A
13. Degradation of marine communities, including vertebrate, invertebrate, and plant species.^A
14. Alteration in natural taste, odor, and color of fish, shellfish, or other marine resources used

¹⁵ Verified by a repeat sample taken within 48 hours.

for human consumption.^A

15. Concentrations of organic materials in fish, shellfish or other marine resources used for human consumption to bioaccumulate to levels that are harmful to human health.^A
16. Degradation of marine life due to radioactive waste.^{A,B}
17. Temperature of the receiving water to adversely affect beneficial uses.^C

D. BIOSOLIDS SPECIFICATIONS

Note: "Biosolids" refers to adequately treated, non-hazardous sewage sludge as defined in 40 CFR 503.9. Sewage sludge that is hazardous as defined in 40 CFR 261 must be disposed in accordance with Resource Conservation and Recovery Act (RCRA) requirements. Sludge with PCB levels greater than 50 mg/kg must be disposed in accordance with 40 CFR 761.

1. All biosolids generated by the Discharger shall be used or disposed of in compliance with the applicable portions of
 - a. 40 CFR 503: for biosolids that are land applied, placed in surface disposal sites (dedicated land disposal sites or monofills), or incinerated;
 - b. 40 CFR 258: for biosolids disposed in municipal solid waste landfills;
 - c. 40 CFR 257: for all biosolids use and disposal practices not covered under 40 CFR 503 or 258.

40 CFR 503 Subpart B (land application) applies to biosolids applied for the purpose of enhancing plant growth or for land reclamation. 503 Subpart C (surface disposal) applies to biosolids placed on the land for the purpose of disposal.
2. The Discharger is responsible for assuring that all biosolids produced at its facility are used or disposed in accordance with these rules. The Discharger is responsible for informing

subsequent preparers, applicers, and disposers of the requirements that they must comply with these rules.

E. REQUIREMENTS FOR INFILTRATION AND SPILL PREVENTION PROGRAM

The Discharger and Port San Luis Harbor District shall develop and implement an Infiltration/Inflow and Spill Prevention Program (Program). The Program shall be reviewed and updated as necessary by September 1st of each year. The Program shall be submitted to the Executive Officer by **September 1, 2005**, and annually thereafter if requested by the Executive Officer.

1. The Program shall be developed in accordance with good engineering practices and shall address the following objectives:
 - a. Identify infiltration and inflow sources that may affect treatment facility operation or result in overflow or exceed pump station capacity; and,
 - b. Identify, assign, and implement spill prevention measures and collection system management practices to ensure overflows and contribution of pollutants or incompatible wastes are minimized.
2. The Program shall provide a description of the collection and transport system, measures used to ensure proper operation, and other information necessary to determine compliance with these requirements. The Program shall include, at a minimum, the following items:
 - a. A map showing: collection system lines, pump stations, standby power facilities, surface water bodies (including discharge point(s) where pump station overflows may occur), storm drain inlets, and date of last revision.
 - b. A narrative description of the following:
 - i. Line Flushing and Cleaning: Describe available equipment, staff and projected schedule necessary to clean and flush entire system every two

- years. Describe coordination with area plumbers to address introduction of incompatible wastes (root balls) during lateral cleaning and efforts to abate introduction of construction debris into the system.
- ii. Visual System Inspection: Describe visual inspection methods (e.g., televising lines), replacement schedules, frequency, collection system length and assigned staff. Describe results and detail problem areas found.
 - iii. Inflow & Infiltration: Describe current and five year projected investigation methods, efforts to reduce storm water inflows and sewer line ex-filtration.
 - iv. Preventive Repair and Replacement: Describe a projected schedule to eliminate sewage conveyance systems determined or projected to be structurally compromised. List each project or reach of conveyance to be replaced separately along with proposed start and estimated completion dates.
 - v. Pump Station Maintenance: Describe each pump station, location, flow monitoring (wet and dry weather), and the previous year's operational problems and overflows.
 - vi. Alternate Power Supply for Pump Station Operation: Describe alternate power supply for each pump station within the entire system.
3. Fiscal Resources: The Program shall provide a description of fiscal resources necessary to ensure system operation. The Program shall include, at a minimum, the following items:
- a. Fee Structure: Quantification of current and five year projected sewer assessment fees necessary to implement the Program, including a comparison of fees collected by the Discharger as well as those collected by all other member sewerage entities.
 - b. Available Fiscal Resources: Actual and five year projected budget expenses for staffing, operation and replacement of the collection system, including a description of a capital improvement or sinking fund to provide funding for item 5.e., below.
4. Personnel and Training: The Program shall provide a description of staffing available to ensure system operation. The Program shall include, at a minimum, the following items:
- a. Personnel: Identify specific individuals (and job titles) who are responsible for developing, implementing, and revising the Program. Provide an organizational chart of all staff, position, duties, and training received during the past year. Identify managers and provide a list of contacts with associated phone numbers.
 - b. Training: List the frequency of training, qualification of each employee, and coordination with the Discharger and other member entities. Periodic dates for training shall be identified.
5. Planning and Reporting: The Program shall provide a description of planning efforts and reporting of system operation. The Program shall include, at a minimum, the following items:
- a. Spill Response: Describe a plan, identify employees responsible and duties necessary to implement your response to spills. Identify posting, notification, and spill estimation efforts used.
 - b. Annual Reporting: List spills or system problems during the previous year, cleanups, amounts, location, and efforts to ensure similar spills or problems do not reoccur. A tracking or follow-up procedure shall be used to ensure appropriate response has been taken. Inspections and maintenance activities shall be documented and recorded.
 - c. Offsite and Onsite Spill Alarms: Describe

the current or proposed alarm system (or why unnecessary), central information location, staffing and response times for detecting spills from the system.

- d. Wet Season Manhole Inspections: Describe or propose frequency to conduct inspections to detect line blockage during wet season flows to avoid system overflows, staffing, and available and projected equipment to ensure safe and effective inspections.
- e. Capital Improvement - Describe a current and projected work plan.
- f. Five Year Planning - Describe projected planning efforts.
- g. 20 Year Planning - Describe long-term planning efforts.

F. PROVISIONS

1. Replacement of the outfall diffuser shall be completed by **June 30, 2005**. Failure to complete the replacement of the outfall diffuser by such date shall justify disapproval of funding allocated to the diffuser project by Resolution No. 00-004, unless failure to complete the project is outside the control of the Discharger. Results of dilution modeling of the new diffuser shall be submitted by **August 30, 2005**. If the minimum initial dilution of the new diffuser is found to be greater than 10:1 (seawater:effluent), this permit may be reopened to revise relevant effluent limitations.
2. The Discharger shall complete a Feasibility Study of water recycling in Avila Beach. Potential use of both Secondary-23 and Tertiary 2.2 quality (as defined in Title 22) recycled water shall be evaluated. At least three recycled water use areas shall be evaluated, including irrigation of the nearby golf course. If the primary hindrance to irrigation of the golf course is that it currently falls outside the service area of the Discharger, the feasibility of including the golf course in the Discharger's service area shall be discussed. An approximate cost of each recycled water use scenario shall be provided, as well as a comparison of such costs to current water costs. A recommendation as to whether water recycling should be pursued shall be included. The final Feasibility Study shall be submitted to the Executive Officer by **May 15, 2005**.
3. Discharger shall implement a toxicity reduction evaluation and take appropriate remedial action to reduce toxicity to its required level if the effluent Acute or Chronic Toxicity limit is consistently exceeded.^A
4. The requirements prescribed by this Order supersede the requirements prescribed by Order No. 99-59, adopted by the Board on September 9, 1999. Order No. 99-59, Waste Discharge Requirements for Avila Beach Community Services District, is hereby rescinded.
5. Discharger shall comply with "Monitoring and Reporting Program No. R3-2004-0068," as ordered by the Executive Officer.
6. Discharger shall comply with the attached "Standard Provisions and Reporting Requirements for National Pollutant Discharge Elimination System Permits," dated January 1985. Paragraph (a) of item E.1. shall apply only if the bypass is for essential maintenance to assure efficient operations.
7. This Order is effective as of the date it is issued.

8. This Order expires **September 10, 2009**, and the Discharger must file a Report of Waste Discharge in accordance with Title 23, Division 3, Chapter 9, of the California Code of Regulations, no later than **March 10, 2009**, if it wishes to continue the discharge.^D

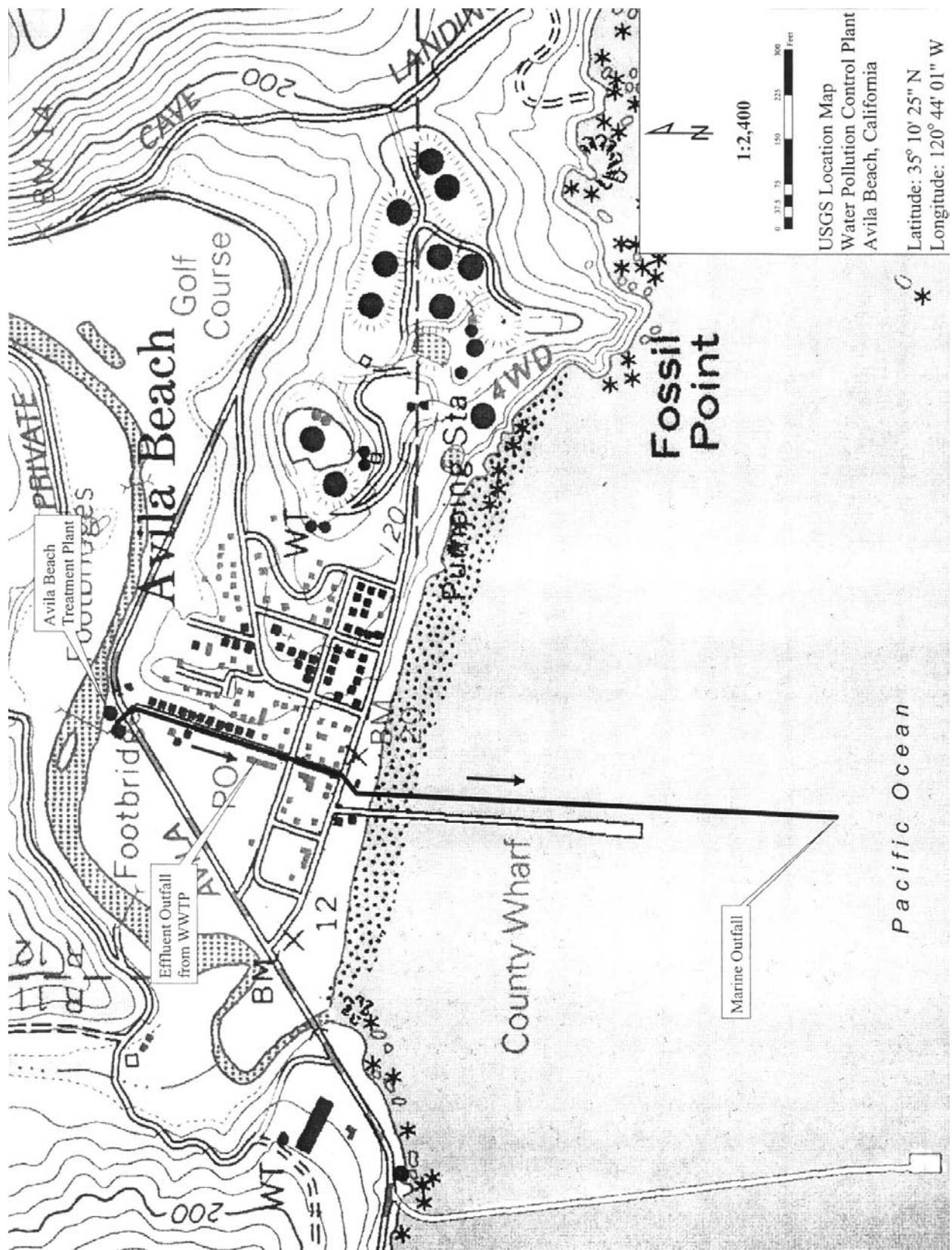
IT IS FURTHER ORDERED, that Port San Luis Harbor District shall:

1. Comply with all applicable sections of the attached "Standard Provisions and Reporting Requirements".
2. Cooperate with the Discharger in implementing its pollutant source control program.

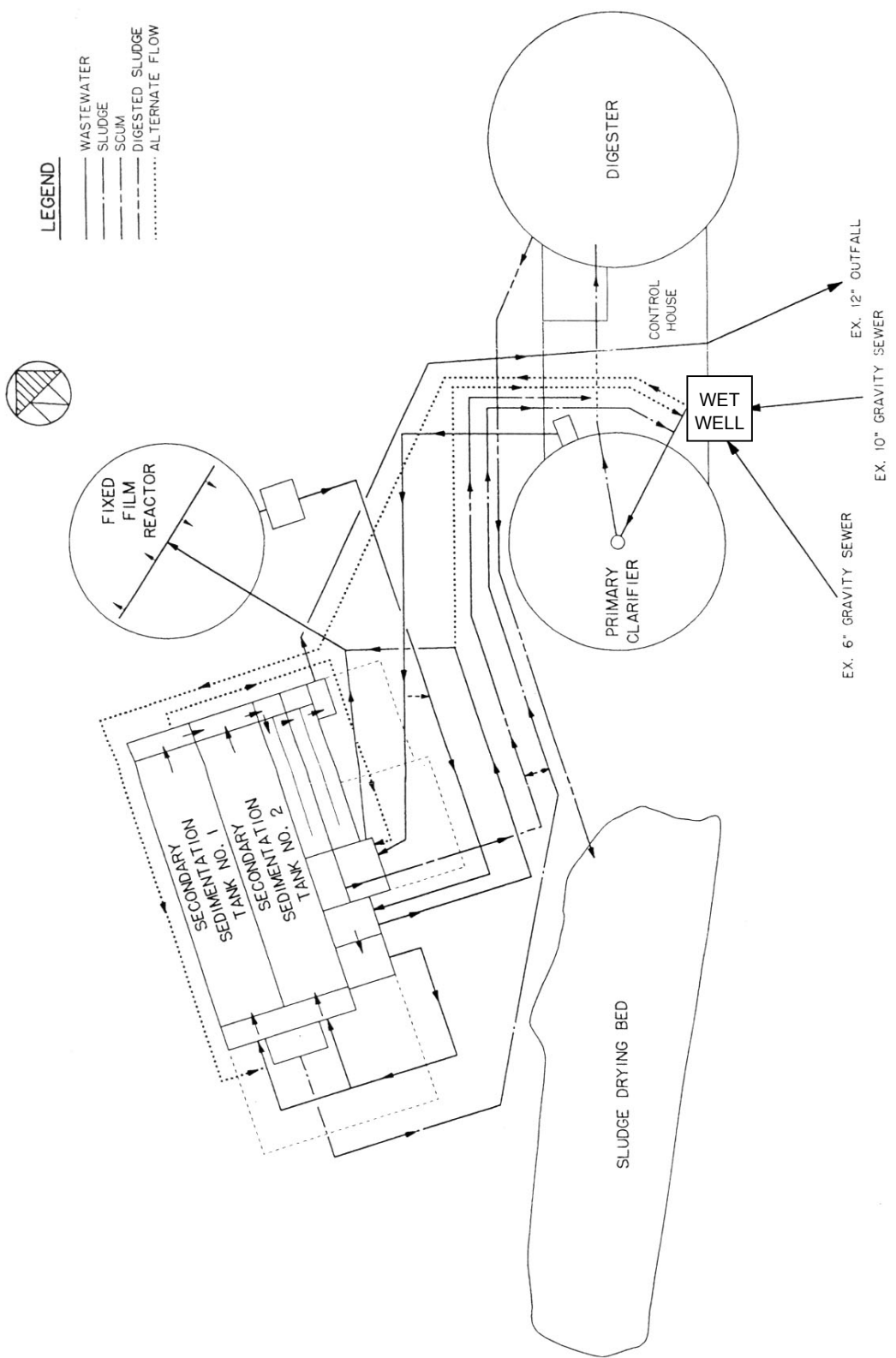
I, Roger W. Briggs, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Coast Region, on September 10, 2004.

Executive Officer

Date



Attachment A
Facility Location
Avila Beach Community Services District WWTP



Attachment B
Treatment Process
Avila Beach Community Services District WWTreatment Process